

		The Order arbitration agreement specifically provides as follows: "To initiate the arbitration, you will pay the filing fee directly to AAA and we will pay all subsequent AAA fees for the arbitration, except you are responsible for your own attorney, expert, and other witness fees and costs unless otherwise provided by law. If you prevail on any claim, we will reimburse you your filing fee. The arbitration will be held in the city or county of your residence. To learn more about the Rules and how to begin an arbitration, you may call any AAA office or go to www.adr.org" . (Ex. 1 to Decl. of Kim). Plaintiff has not made any argument as to why this language, specifically, is unconscionable. The court will STAY this action pending resolution of the parties' arbitration. (See Code Civ. Proc., § 1281.2.) The court sets a Status Conference Re: Status of Arbitration for December 04, 2025, at 9:00 a.m. in this department. Defendant shall give notice.
2	Luisi v. Vishnevski	<u>Motion for Leave to File Cross-Complaint</u> Defendant Vitaly Vishnevski moves for leave to file a Cross-Complaint against Plaintiffs Michael John Luisi and Diana Genin Heard and ROS 1 through 50. For the following reasons, the motion is GRANTED. Code Civ. Proc. § 428.10 provides that a party may file a cross-complaint setting forth: "[a]ny cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." There are two types of cross-complaints: compulsory cross-complaints and permissive cross-complaints. A compulsory cross-complaint is a cross-complaint that is asserted against the plaintiff and related to the subject matter of the complaint. (Code Civ. Proc. § 426.30.) A cross-complaint is "related" to the complaint if it arises out of the same transaction, occurrence, or series of transactions or occurrences as the complaint. (Code Civ. Proc. § 426.10(c).) All other cross-complaints are permissive cross-complaints. If the proposed cross-complaint is permissive, leave of court may be granted "in the interests of justice" at any time during the course of the action. (Code Civ. Proc. § 428.50(c).) On the other hand, if the proposed cross-complaint is compulsory, leave <i>must</i> be granted so long as defendant is acting in good faith. (Code Civ. Proc. § 426.50.) Cross-complaints for equitable indemnity are virtually always transactionally related to the complaint that has been filed in the main action. (<i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39.) This is because "[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore